



Forthcoming judgments and decisions

The European Court of Human Rights will be notifying in writing eight judgments on Tuesday 7 January 2020 and 27 judgments and / or decisions on Thursday 9 January 2020.

*Press releases and texts of the judgments and decisions will be available at **10 a.m.** (local time) on the Court's Internet site (www.echr.coe.int)*

Tuesday 7 January 2020

[Ciupercescu v. Romania \(application no. 41995/14\)](#)

The applicant, Dragoş Ciupercescu, is a Romanian national who was born in 1971 and lives in Bucharest.

The case concerns his complaints of inadequate conditions of detention.

Mr Ciupercescu was sentenced to 18 years' imprisonment in 2005 and was detained in various prisons until his release on parole in 2016.

During that period, he lodged complaints with the post-sentencing judge about the conditions of his detention in Giurgiu Prison from January 2009 and then in Jilava Prison where he was transferred in January 2015, essentially on account of overcrowding and inadequate heating. The judge found for the applicant, but did not award compensation. As a result of the applicant's complaint about overcrowding, he was placed in a cell in Jilava Prison with more personal space as of March 2015.

Mr Ciupercescu also brought complaints before the domestic courts about being exposed to cigarette smoke while being transported to court for hearings on his case and while in the waiting rooms at the courts; of inadequate dental treatment; about not being able to communicate online with his wife, who was living in Italy; and about having to inform the prison authorities of all the telephone numbers he wished to call, alleging an infringement of the confidentiality of his communications. The courts dismissed all the complaints, except for the one about online communication where it acknowledged a breach of his rights owing to a lack of regulation.

Relying on Article 3 (prohibition of inhuman or degrading treatment) and Article 8 (right to respect for private and family life, the home, and correspondence) of the European Convention on Human Rights, Mr Ciupercescu complains about the conditions of his detention in Giurgiu Prison and Jilava Prison and the restrictions on his communications in Jilava Prison.

Thursday 9 January 2020

[B.L. and Others v. France \(no. 48104/14\)](#)

The 23 applicants are Albanian, Armenian, Azerbaijani, Bosnian, Kosovar, Serbian and Togolese nationals. Being families, couples accompanied by children then aged four to fourteen or without children, and seven adults, they all present themselves as asylum-seekers.

The case concerns asylum-seekers housed in a tent camp in Metz.

On 19 June 2013 the Prefect of Moselle opened a camp on Avenue de Blida in Metz. Up to 450 people lived in tents there. The camp was closed and dismantled on 15 November 2013, then

reopened on 17 March 2014 to cater for the occupants of a makeshift camp being re-established nearby.

E.G., the first applicant, who was born in 1958, is a Kosovar national. She arrived in France in January 2012 and applied for asylum. Her temporary leave to remain as an asylum-seeker was refused by the Prefect in February 2012 and her application for international protection was dismissed by the OFPRA in March 2012. In her application, she states that she entered France in February 2014 to seek asylum. On 20 March 2014 she moved into the camp on Avenue de Blida in Metz. On 26 March 2014 she lodged an application with the Strasbourg Administrative Court for urgent relief, relying in particular on Directive 2003/9/EC of 27 January 2003 laying down minimum standards for the reception of asylum-seekers. She complained in particular about the extreme precariousness of her housing conditions and the fact that she had never been granted decent accommodation. The other applicants filed a similar urgent application with the Strasbourg Administrative Court. On 27 and 28 March 2014 and 23 June 2014, the judge dismissed these applications on the grounds, *inter alia*, that on account of their very recent arrival in France the Prefect of Moselle could not be accused of failing to provide for their accommodation immediately.

On 4 December 2014 and 25 April 2016, the same applicant applied for a residence permit on the basis of status as an ill foreigner. On 4 November 2016 the Prefect issued an order refusing her a residence permit and requiring her to leave France within 30 days, indicating Kosovo or Montenegro as the destination country.

Relying on Article 3 (prohibition of inhuman or degrading treatment) of the Convention, the applicants complain about the poor conditions of their accommodation.

[Jeddi v. Italy \(no. 42086/14\)](#)

The applicant, Mr Sami Jeddi, is a Tunisian national, who was born in 1983 and lives in Castel Volturno (Italy).

The case concerns the applicant's appeal against his placement in the Milan Identification and Expulsion Centre with a view to his removal, despite a court ruling requiring the authorities to grant him a residence permit on humanitarian grounds.

In April 2011 Mr Jeddi was arrested by Italian police on the island of Lampedusa where he had come ashore illegally and without identity documents.

On 21 April 2011 the police authorities issued him with a removal order and, pending its execution, he was placed in the Identification and Expulsion Centre in Santa Maria Capua Vetere; he submitted an application for international protection while he was there. On 31 May 2011 the Territorial Commission for the Recognition of International Protection rejected his request. Mr Jeddi challenged this decision before the Naples District Court. In a judgment of 16 November 2011 the court held that the grounds for seeking asylum or subsidiary protection were not sufficient. However, the court took the view – on the basis of a decree of the President of the Council of Ministers of 6 October 2011 – that the applicant was entitled to a residence permit on humanitarian grounds until 31 December 2012.

On 24 December 2011 Mr Jeddi arrived in Switzerland where he submitted an asylum application. On 19 October 2012 the Swiss authorities sent him back to Italy in accordance with the “Dublin Regulation”. Upon his arrival at Milan airport, he was taken to the border police and on the same day the Prefect of Varese notified him of a removal order against him. Pursuant to this order, he was taken to the Identification and Expulsion Centre in Milan pending his removal.

On 22 October 2012 the Milan Justice of the Peace, after hearing the applicant, who was assisted by an interpreter and a court-appointed lawyer, endorsed the detention measure.

On 2 November 2012, after his lawyer had transmitted the judgment of the Naples District Court of 21 November 2011 to the Milan police authorities, the applicant was released. Upon an appeal by the applicant, the Justice of the Peace of Varese annulled the removal order and found that Mr Jeddi was allowed to remain in Italy until 31 December 2012, the expiry date of his humanitarian residence permit.

The applicant then lodged an appeal before the Court of Cassation against the decision of the Justice of the Peace of Milan who had endorsed his placement in the detention centre. The appeal was dismissed.

Relying on Article 5 § 1 (right to liberty and security), the applicant claims that his placement in the Identification and Expulsion Centre in Milan for 14 days in spite of the judgment of the Naples District Court which required the Italian authorities to grant him a humanitarian residence permit did not meet the requirements of the Convention. Under Article 5 § 4 (right to a speedy decision on the legality of detention), he complains about the limited review by the Milan Justice of the Peace of the legality of his detention.

The Court will give its rulings in writing on the following cases, some of which concern issues which have already been submitted to the Court, including excessive length of proceedings.

These rulings can be consulted from the day of their delivery on the Court's online database [HUDOC](#).

They will not appear in the press release issued on that day.

Tuesday 7 January 2020

Name	Main application number
Asimionese v. the Republic of Moldova	74542/12
Cazac and Surchician v. the Republic of Moldova and Russia	22365/10
Grăjdianu and Others v. the Republic of Moldova	10790/11
Demir v. Turkey	324/10
H.K. v. Turkey	23591/10
Kapmaz and Others v. Turkey	55760/11
Kapmaz v. Turkey	13716/12

Thursday 9 January 2020

Name	Main application number
Stecher v. Austria	35449/16
Belošević v. Croatia	57242/13
Crnković v. Croatia	69697/11
Abaloğlu v. Turkey	37416/06
Abay v. Turkey	52850/12
Akkaya v. Turkey	19452/12
Aydın v. Turkey	47355/11
Bek v. Turkey	36527/10
Çelebi v. Turkey	55657/09
Cömert and Others v. Turkey	20053/06
Dev Sağlık İş Devrimci Sağlık İşçileri Sendikası and Others v. Turkey	64015/09
Doğ-Kar Ltd. Şti. v. Turkey	49089/07
Eraslan and Others v. Turkey	428/10

Name	Main application number
Kafes v. Turkey	11703/07
Kaplan v. Turkey	42762/12
Öztaş v. Turkey	24369/11
Sevim v. Turkey	10688/12
Sönmez and Others v. Turkey	22263/10
Aleksandrov v. Ukraine	56483/09
Babenko v. Ukraine	36194/10
Filozofenko v. Ukraine	72954/11
Novikov v. Ukraine	47067/11
Sargsyan and Others v. Ukraine	54012/07
Siyanko v. Ukraine	52571/11
Us v. Ukraine	41467/11

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The European Court of Human Rights was set up in Strasbourg by the Council of Europe Member States in 1959 to deal with alleged violations of the 1950 European Convention on Human Rights.